

HOUSE No. 5640

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2026.

The committee on Ways and Means, to whom was referred the Bill authorizing the town of Hingham to grant to the Commonwealth of Massachusetts certain parcels of land in the town of Hingham for highway purposes (House, No. 5504), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5640) [Local Approval Received].

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Hingham to grant to the commonwealth of Massachusetts certain parcels of land in the town of Hingham for highway purposes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, the town of
2 Hingham may transfer to the Massachusetts Department of Transportation, for highway
3 purposes, certain parcels of land under the care, custody and control of the town of Hingham
4 select board, including parcels held for park, conservation and recreation purposes, and located
5 in the town of Hingham, identified on a plan of land entitled, “Massachusetts Department of
6 Transportation Highway Division Plan and Profile of Route 3A / Summer Street / Rockland
7 Street in the Town of Hingham Plymouth County Preliminary Right of Way Plans”, dated July 1,
8 2026 and is on file with the Massachusetts Department of Transportation.

9 SECTION 2. (a) As mitigation for the transfers authorized by section 1, the town of
10 Hingham shall transfer to its conservation commission subject to the provisions of Article 97 of
11 the Amendments to the Constitution of the Commonwealth and section 5A of chapter 3 of the
12 General Laws, the care, custody and control of an approximately 8 acre portion of the
13 approximately 10.78 acre parcel of land shown as Assessor’s Map 106, Lot 3 and known as 0

Hobart street, located in the town of Hingham, as shown on a plan of land entitled, “Approval Not Required Plan of Land Off Hobart Street Hingham, MA 02043”, dated May 13, 2026 and on file with the town of Hingham town clerk, which land is currently under the care, custody and control of the town of Hingham select board for general municipal purposes.

(b) As additional mitigation for the transfers authorized by section 1, and in addition to the land dedicated in subsection (a), the Massachusetts Department of Transportation shall compensate the town of Hingham in an amount not less than 110 per cent of the fair market value or value in use of the transferred lands, whichever is greater, as determined by a professional appraisal commissioned by the Massachusetts Department of Transportation. Any funds transferred under this section shall be deposited in a fund dedicated to the conservation of land in the town of Hingham.

(c) The Massachusetts Department of Transportation shall submit the appraisals and a report thereon to the inspector general for review and comment. The inspector general shall review and approve the appraisals and the review shall include an examination of the methodology utilized for each appraisal. The inspector general shall prepare a report of the review and file the report with the commissioner of capital asset management and maintenance, who shall submit copies of the appraisals and the inspector general’s report and comments, if any, to the house and senate committees on ways and means and the joint committee on state administration and regulatory oversight not less than 15 days prior to the execution of the conveyance authorized in this act.

34 SECTION 3. The Massachusetts Department of Transportation shall assume all costs
35 associated with engineering, surveys, appraisals, deed preparation and other expenses necessary
36 to execute the conveyances authorized by this act.

37 SECTION 4. This act shall take effect upon its passage.